

forwarding station or at any place before the destination station and to recover the cost of such unloading and any charge for the detention of any wagon on this account.

Comment

Section 73 provides for levy of punitive charges for overloading a wagon.

Penal Provision.- It is to be construed rigidly.

74. Passing of property in the goods covered by railway receipt.- The property in the consignment covered by a railway receipt shall to the consignee of the endorsee, as the case may be, on the delivery of such railway receipt to him and he shall have all the rights and liabilities of the consignor.

Comment

Section 74 provides for passing of property in the consignment covered by a railway receipt.

75. Section 74 not to affect right of stoppage in transit or claims for freight.- Nothing contained in Sec. 74 shall prejudice or affect-

- (a) any right of the consignor for stoppage of goods in transit as an unpaid vendor (as defined under the Sale of Goods Act, 1930 (3) of 1930) on his written request to the railway administration;
- (b) any right of the railway to claim freight from the consignor; or
- (c) any liability of the consignee or the endorsee, referred to in that section by reason of his being such consignee or endorsee.

Comment

Section 75 lays down the right of stoppage in transit by consignor as an unpaid vendor and right of railway administration for unpaid freight.

76. Surrender of railway receipt.- The railway administration shall deliver the consignment under a railway receipt on the surrender of such railway receipt

Provided that in case the railway receipt is not forthcoming, the consignment may be delivered to the person, entitled in the opinion of the railway administration to receive the goods, in such manner as may be prescribed.